

		Defendant also requests appointment of a referee to supervise the deposition process. While there has been a lot of letter writing between counsel, there is insufficient evidence to warrant a referee. The court does not find "exceptional circumstances" exist based on the record submitted. (<i>Rule 3.920(c)</i>.) Accordingly, the request for a referee is DENIED. The requests by both parties for sanctions are DENIED. The court finds that under the circumstances, imposition of sanctions would be unjust. (<i>Code of Civil Procedure §2025.420(h)</i>.) <i>Counsel for plaintiff is ordered to give notice.</i>
7.	Kumar v. Children's Hospital of Orange County 23-1361438	Before the Court at present is the Motion to Set Preferential Trial Date, filed on 6/3/26 by Plaintiff Arjun Kumar, a minor, by and through his Guardian Ad Litem, Pavan Kumar ("Plaintiff"). The Motion demonstrates grounds for trial priority under <i>C.C.P. § 36(b)</i> and asks here to confirm priority for the existing 4/19/27 trial date. That date comports with the requirements of <i>C.C.P. § 36(g)</i>. The Court therefore GRANTS the Motion, to provide priority in accordance with <i>C.C.P. § 36(b)</i> and (<i>g</i>) for the 4/19/27 trial date. <i>Counsel for Plaintiff is to give notice.</i>
8.	Medina v. Unilogic Healthcare Management LLC 26-1554435	Before the Court is a motion to compel arbitration and stay proceedings filed by defendant Unilogic Healthcare Management LLC (Defendant) against plaintiff Leslie Medina (Plaintiff). For the reasons set forth below, the motion is GRANTED, subject to severance of the cost-splitting provision. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court must grant the petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for rescission of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (<i>Code of Civ. Proc. § 1281.2</i>.) Here, Defendant met its burden to show a written arbitration agreement exists between the parties. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [burden]; Declaration of Maggie Nava ("Nava Decl.") ¶¶ 3, 4, Ex. B.) The burden shifted to Plaintiff to demonstrate the agreement is unenforceable. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Plaintiff argues the arbitration agreement is unconscionable. Where the court determines, as a matter of law, that a contract or any provision in the contract is unconscionable at the time it was made, the court may refuse to enforce the contract or clause or may limit the application of the clause to avoid an unconscionable result. (<i>Civ. Code § 1670.5</i>.) The doctrine has "both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal